

Form No: HCJD/C-121

ORDER SHEET
IN THE LAHORE HIGH COURT, MULTAN BENCH MULTAN.
JUDICIAL DEPARTMENT

W.P. No.8686 of 2015.

Abdul Majeed.

Versus

Chief Secretary Punjab etc.

S. No. of order/ Proceeding	Date of order/ Proceeding	Order with signature of Judge, and that of Parties or counsel, where necessary
-----------------------------------	---------------------------------	---

12.06.2015. Malik Ali Muhammad Dhol, Advocate for the petitioner.
Mr. Aziz-ur-Rehman, A.A.G. on Court's call.

Brief facts necessary for disposal of this writ petition are that on 13.05.2010, respondent No.2 transferred the petitioner, an Inspector of Punjab Police, for posting in Anti Corruption Establishment and in line of that respondent No.3 further posted the petitioner accordingly. In pursuance of those orders, petitioner relinquished charge of his post for joining duty in Anti Corruption Establishment. On 18.03.2015, respondents vide Notification No.SOEII (S&GAD) 3-47/2010, ordered for repatriation of petitioner to his parent department i.e. Punjab Police. Petitioner challenged the said notification through Writ Petition No.4268/2015, wherein following order was passed:-

“In view of the above, a copy of this petition along with the annexes there to be transmitted to respondent No.2 forthwith, who shall look into the matter sympathetically and redress the grievance of the petitioner within the frame work of law by making a speaking order thereon, within the period of fortnight. Until then, the impugned order dated 18.03.2015 shall remain suspended. Disposed off.”

Thereafter, respondent No.2 again rejected the representation of petitioner through order dated 28.05.2015. Now the petitioner has challenged the said

order dated 28.05.2015, issued by respondent No.2, through instant writ petition, with the following prayer:-

“It is mot respectfully prayed that this petition may kindly be accepted and the impugned orders dated 18.03.2015 and 28.05.2015 passed by the respondent No.2 to 5 may kindly be declared illegal, null, and void, without jurisdiction, without lawful authority, based on malafide and political consideration and also against the fundamental right of the petitioner. And the same may kindly be set aside in the interest of justice.

Any other relief, which this Honorable Court deems fit and proper, may kindly be granted in favour of the petitioner, in the interest of justice.”

2. Learned counsel for the petitioner contends that matter of tenure, posting, transfer and deputation cannot be dealt with in an arbitrary manner. This Court can interfeer when fundamental rights of a civil servant, inter area, under Articles 9, 14 & 18 of the Constitution, 1973, are violated and when such an order seems to be illegal and void ab-initio. According to him, impugned orders are arbitrary, unreasonable and contrary to law and can be validly scrutinized on the touch stone of the Constitutional mandate; adds that Authorities cannot be allowed to exercise discretion at their whims, sweet will or in an arbitrary manner, rather they are bound to act fairly, evenly and justly. Further summits that the impugned orders are politically motivated which cannot be allowed to remain in the field. In support of his contentions he has referred to the following judgments.

- i. Syed Mahmood Akhtar Naqvi and others vs. Federation of Pakistan and others. (PLD 2013 Supreme Court 195)***
- ii. Regarding Corruption in Hajj Agreement in 2010 (2011 PLC (C.S.) 1489)***

- iii. ***Abida Parveen, Primary Teacher, Government Girls Primary Schools, Mirpur. Vs. District Education Officer Schools Elementary (Female) Mirpur and 4 others.***
(PLJ 2013 SC (AJ&K) 344(DB))
- iv. ***Dr. Samina Younas vs. Government of Punjab etc.***
(PLJ 1998 Lahore 532)
- v. ***Irshad Begum & others vs. Muhammad Sarwar.***
(PLJ 1998 Lahore 536)
- vi. ***Regarding corruption in Hajj Arrangement in 2010 (Application by Abdul Rasheed & others)***
(PLJ 2012 SC 73)
- vii. ***Abdul Razaq vs. Govt. of Balochistan Communication, works, Physical Planning and Housing Department Civil Secretariat, Quetta through its Seceretary.***
(PLJ 2011 Quetta 17 (DB))
- viii. ***Dr. Tasnim Tahira Rehman, Senior Women Medical Officer Senior Registrar, allied Hospital, Faislabad. vs. Govt. of Punjab through Secretary Health, Lahore and 4 others.***
(PLJ 2008 Lahore 973)

3. Heard.

4. It is settled principle that a deputationist does not have any vested right to remain on the post as deputationist forever or for a stipulated period, he could be ordered to be repatriated to the parent Department at any time without assigning any reason. Petitioner being deputationist has no vested right to remain on a post as deputationist or otherwise and can be ordered to be repatriated and or relieved at any time. The parent Department of the petitioner is not obliged in law, to assign reasons for his repatriation. The petitioner has failed to point out any illegality or legal infirmity in the impugned orders. Petitioner has

no vested right to hold a particular post. In this regard, reliance can be placed on the following judgments:-

- i. S. Masood Abbas Rizvi vs. Federation of Pakistan through Secretary Establishment. (2014 SCMR 799)*
- ii. Dr. Shafi-ur-Rehman Afridi v. C.D.A., Islamabad through Chairman and others (2010 SCMR 378)*
- iii. Shahid Hussain Malik vs. Azad Government of the State of Jammu & Kashmir (2015 PLC(CS) 102)*

5. In the case of S. Masood Abbas Rizvi, (supra), the Hon'ble Supreme Court observed as follows:-

“4. We have heard the petitioner and have perused the record. It is settled principle that a deputationist does not have any vested right to remain on the post as deputationist forever or for a stipulated period, he could be ordered to be repatriated to the parent Department at any time without assigning any reason. This issue was raised in the case of Dr. Shafi-ur-Rehman Afridi v. C.D.A., Islamabad through Chairman and others (2010 SCMR 378) wherein this Court has held that a deputationist does not have vested right to continue for the stipulated period. We are of the considered view that petitioner being deputationist has no vested right to remain on a post as deputationist or otherwise and can be ordered to be repatriated and or relieved at any time. Moreover, in terms of section 2(b)(i) of Civil Servants Act, 1973 such person even loses his status as "Civil Servant" during the period he is on deputation. The parent Department of the petitioner is not obliged in law, to assign reasons for his repatriation. The learned High Court while dismissing the Petition of the petitioner has rightly held that the parent Department of the petitioner was competent to issue the Notification dated 22nd July, 2013, for which the Department was not required to assign reasons as the petitioner was holding regular/substantive

post with the Department of Auditor-General of Pakistan.”

6. The case law, referred to above, by the learned counsel for the petitioner are of no relevance as the same do not show that a deputationist has a vested right to remain on the post forever. The above case law does not help the petitioner for his cause as urged before this Court, through this petition.

7. In view of the above, this petition has no merits, therefore, the same is hereby **dismissed**.

(Muhammad Sajid Mehmood Sethi)
Judge

Mian Farrukh

Approved for reporting.